

Defendant Maureen Carapia. The parties have also exchanged written discovery. To date, no medical or psychological records, or specific deposition testimony has been offered by any Defendant regarding the extent or impact of the alleged emotional harm they have suffered.

Based on written discovery and depositions, the parties simply are neighbors with no other preexisting relationship, have not engaged in any prior business dealings, professional relationships, or other interactions that would establish a special relationship between them.

(Brink Decl. at para. 8,9.)

Counsel's declaration does not attach the deposition transcripts or the discovery responses. This is inadequate to meet Cross-Defendants' initial burden under *Aguilar*. Consequently, they are not entitled to summary judgment.

17. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION - MARIAM AZAMEY

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for summary adjudication. The Motion relates to Defendant and Cross-Complainant Maureen Carapia and Jorge Carapia (collectively, "Cross-Complainants")'s Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy. The Motion is unopposed.

As a threshold issue, the Court notes that there is a procedural defect with the Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Here, Cross-Defendant's Separate Statement is not organized by either cause of action or issue; instead, it has a single category of "Undisputed Material Facts in Support of Summary Adjudication." This does not comply with Rule of Court 3.1350(b).

The court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 523; cf. *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315–316.)

In lieu of denying the motion based upon a defective separate statement in this case, the Court elects to treat the motion as one for summary judgment only.

For the following reasons, the Motion is **denied**.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

Legal Standard

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) Even though the instant motion is unopposed, the Court cannot grant summary judgment unless Defendant meets the initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 [trial court order granting summary judgment reversed despite lack of timely-filed declaration that was proper under CCP § 2015.5 because unless defendant meets his initial burden, summary judgment cannot be granted "even if the opposing party does not respond sufficiently or at all."].) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Analysis

The gravamen of Cross-Defendants' motion is their argument that Cross-Complainants do not have evidence to support their claims.

The Supreme Court in *Aguilar* held that pointing out the absence of evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence establishing that the plaintiff cannot reasonably obtain evidence to support his or her claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855, fn. 23; see also *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891 ["pointing out the absence of evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim."]; see *Zoran Corp. v. Chen* (2010) 185 Cal.App.4th 799, 808 ["It was not enough simply to assert that [plaintiff] had no evidence supporting an element of each cause of action; a moving defendant must indeed present[] evidence, such as affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice must or may be taken."]) [internal

quotations and emphasis omitted].)

Here, rather than submit deposition testimony or discovery responses, the moving parties rely entirely on the declaration testimony of their counsel. His testimony reads:

On February 3, 2025, I took the deposition of Defendant Pamela Parker. On February 4, 2025, I took the deposition of Defendant Jorge Carapia, followed by the deposition of Defendant Maureen Carapia. The parties have also exchanged written discovery. To date, no medical or psychological records, or specific deposition testimony has been offered by any Defendant regarding the extent or impact of the alleged emotional harm they have suffered.

Based on written discovery and depositions, the parties simply are neighbors with no other preexisting relationship, have not engaged in any prior business dealings, professional relationships, or other interactions that would establish a special relationship between them.

(Brink Decl. at para. 8,9.)

Counsel's declaration does not attach the deposition transcripts or the discovery responses. This is inadequate to meet Cross-Defendants' initial burden under *Aguilar*. Consequently, they are not entitled to summary judgment.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: MSC19-01794

CASE NAME: MURPHY VS LU

***HEARING ON MOTION FOR DISCOVERY COMPEL LU TO RESPOND TO FURTHER REQUEST TO PRODUCE DOCUMENTS**

FILED BY: MURPHY, MICHAEL

TENTATIVE RULING:

Motion to Compel Further Responses to Document Request is denied as moot. Trial has already begun.

Courtroom Clerk's Session

19. 10:00 AM CASE NUMBER: C22-01744

CASE NAME: JESSE RIVERA VS. ZULAIKHA AKBARZADA

HEARING IN RE: PROVE-UP SET THE COURT

FILED BY:

TENTATIVE RULING:

Parties to appear in person in Dept. 32.